

Student Privacy Bridge Memo

From Data Protection to Child-Protection Pathway Ownership

One-sentence bridge

Student privacy work already proves that school-authorized vendors must be controlled, limited, transparent, and noncommercial. The missing bridge is that student data, identity, image, work, behavior, and attention are not only privacy objects; they are operating inputs for child visibility, profiling, audience formation, and market conversion inside compulsory public education.

Purpose

This memo is for student privacy advocates who already understand FERPA, COPPA, PPRA, state student privacy laws, ed-tech contracts, and vendor data practices. It asks for one added test: **does the school-controlled data pathway also create child visibility, behavioral shaping, audience participation, or market-facing identity without a child-protection owner?**

The bridge

Privacy frame: Who collects student information, under what authority, for what purpose, with what limits?

Bridge frame: What does that information pathway make the child become visible as - student, user, data subject, profile, content producer, audience member, behavioral target, market participant, or future consumer?

Child-protection frame: Who owns the harm if the pathway produces exposure, sexualization, harassment, coercion, peer ranking, profiling, discipline, self-censorship, or demand/supply formation?

Source facts and bridge findings

Source fact	Bridge finding for student privacy advocates
FERPA permits outsourcing to contractors only when they perform an institutional function, are under school direct control, and are limited in use and redisclosure of education records.	The vendor is not legitimate merely because a school uses it. The school must show control, purpose limitation, and a legally bounded role.
Department of Education model terms guidance tells schools to review online service terms for collection, use, transmission, data mining, sharing, subcontractors, security, retention, deletion, and advertising issues.	The privacy review already contains the materials needed to ask a deeper question: what child-facing pathway is being built by the tool?
The FTC states that ed-tech operators collecting children's information through school authorization may use it only to provide the requested educational service, not for unrelated commercial purposes such as marketing or advertising.	A school assignment cannot become a commercial extraction point. "Educational purpose" must be a hard gate, not a label.

Source fact	Bridge finding for student privacy advocates
The FTC's Edmodo action alleged collection of children's information without proper consent, use of that data for advertising, and unfairly shifting COPPA compliance duties to schools and teachers.	Commercial misuse inside school pathways is already an enforcement-recognized risk, not a theoretical objection.
California SOPIPA restricts targeted advertising, creation of student profiles except for K-12 school purposes, sale of pupil information, and improper disclosure of covered information.	Profiling is not just a privacy issue; profiling is how a child becomes a market-readable object.
California Education Code section 49073.1 requires certain contracts for digital storage/educational software to preserve LEA control of pupil records, limit use to the contract purpose, restrict advertising use, and address security and deletion.	The contract itself is a proof object. If it lacks ownership, deletion, purpose limits, and advertising limits, the pathway is uncontrolled before harm occurs.
PPRA governs surveys, analyses, or evaluations involving protected areas such as sex behavior or attitudes, mental or psychological problems, illegal behavior, family relationships, religion, income, and other sensitive subjects.	Student privacy also protects sensitive inner-life data that can become behavioral profiling and vulnerability mapping.
CDT student activity monitoring research reports greater monitoring of students using school-issued devices and identifies privacy implications of monitoring software.	Monitoring can change the child's behavior, speech, searches, privacy expectations, and exposure to discipline or law-enforcement pathways.

What this bridge adds

- Student data is not only information. It can become infrastructure for visibility, profiling, ranking, engagement, audience formation, identity formation, discipline, and future market conversion.
- A student image, voice, assignment, portfolio, search, click, screen, biometric cue, mental-health flag, discipline flag, or communication can become a pathway object, not merely a privacy object.
- A vendor can comply on paper with narrow data terms while the larger classroom pathway still converts children into monitored, visible, scored, profiled, or market-facing participants.
- The missing question is ownership: if the school-authorized tool creates exposure, sexualization, peer targeting, coercion, self-censorship, behavioral shaping, or demand/supply formation, who has stop authority and abatement duty?

Bridge test for a student privacy review

Gate	Question to ask
Authority	Was the tool assigned, required, encouraged, funded, procured, embedded in curriculum, used for grading, or made practically unavoidable?
Child asset	Does the tool collect or expose identity, image, voice, work product, communications, search, attention, behavior, mental-health data, location, biometrics, peer relationships, or sensitive survey responses?
Commercial function	Does the vendor use data for advertising, marketing, profiling, product development, AI/model training, engagement optimization, analytics beyond the educational service, affiliate sharing, or future commercial advantage?
Visibility function	Does the school pathway make the child public-facing, audience-facing, portfolio-facing, platform-facing, ranked, searchable, branded, or socially comparable?
Direct control	Can the district prove direct control, not just a click-through TOS, vendor assurance, or broad privacy promise?

Gate	Question to ask
Refusal alternative	Can a child or parent refuse without losing access, grades, participation, opportunity, status, or teacher approval?
Stop authority	Who can stop the tool, remove the vendor, delete the data, take down exposed content, disable sharing, end monitoring, or change the curriculum pathway?
Protected harm coding	If harm appears, is it coded as a protected child-status issue or routed only into bullying, discipline, online safety, counseling, or individual behavior?
Aggregation and abatement	Can repeated harm across tools, classrooms, demographics, vendors, schools, or years be counted and used to end the pathway?

The ask for student privacy advocates

Request

Add a child-protection pathway review to student privacy review. Do not stop at whether the vendor collects data lawfully. Ask what the school-authorized data, identity, visibility, monitoring, and engagement pathway does to the child - and who owns the duty to stop, delete, withdraw, code, aggregate, and abate harm when the pathway fails.

- Require public vendor inventories that disclose not only data collected, but child-facing functions: visibility, publishing, audience, ranking, monitoring, engagement, profiling, SEL/mental-health screening, and public display.
- Require contracts to state who owns stop authority, deletion, takedown, refusal alternatives, parent/student access, correction, transfer, and end-of-contract destruction.
- Treat school assignments that force data submission, public identity, portfolio publication, monitoring, or behavioral profiling as more than privacy events; treat them as child-protection pathway events.
- Flag any tool that cannot prove educational necessity, noncommercial purpose, direct public control, data minimization, no advertising/profiling, and a non-punitive refusal alternative.
- Add sex-specific and child-status harm coding so exposure, sexualization, coercion, harassment, demand formation, supply formation, self-censorship, and discipline conversion are not lost inside generic privacy, bullying, discipline, or safety buckets.

Plain-language close

Close

The student privacy movement already has the legal gate. This bridge adds the pathway test: when a public school gives a profit actor access to a child's data, identity, work, image, behavior, or attention, the question is not only “Was data collected lawfully?” The question is “What child pathway did that collection build, and who owns the harm if the pathway turns the child into a profile, audience object, content source, behavioral target, discipline object, or market participant?”

Sources used

- [FERPA school official/direct control FAQ](#)
- [FERPA outsourced service limitations FAQ](#)
- [SPPO Model Terms of Service for Online Educational Services](#)
- [FTC Policy Statement on Education Technology and COPPA](#)
- [FTC Edmodo enforcement press release](#)
- [FTC Edmodo business guidance blog](#)
- [California Business and Professions Code section 22584 \(SOPIPA\)](#)
- [California Education Code section 49073.1](#)
- [Protection of Pupil Rights Amendment FAQ](#)
- [CDT - Online and Observed report](#)
- [Reuters - classroom technology lawsuits](#)